Congress of the United States

Washington, DC 20515

March 11, 2026

The Honorable Scott Bessent
Secretary
Department of the Treasury
1500 Pennsylvania Avenue, NW
Washington, D.C. 20220

Dear Secretary Bessent:

In the weeks since the United States captured Venezuelan President Nicolás Maduro, the Trump Administration has overseen the sale of Venezuelan oil. President Trump stated that the United States would take control of up to 50 million barrels of Venezuelan oil, valued at approximately $2.8 billion, and sell the oil at market price.[1] In a January 6, 2026, Truth Social post, President Trump stated that the oil revenues "will be controlled by me, as President of the United States of America, to ensure it is used to benefit the people of Venezuela and the United States!"[2]

On January 9, 2026, President Trump issued an Executive Order (EO) declaring that the proceeds from these oil sales are the sovereign property of the Government of Venezuela and directing the Treasury Secretary to hold these funds solely in a "custodial and governmental capacity." The EO further directs the Treasury Secretary to "comply with instructions regarding disbursements or transfers…as may be determined by the Secretary of State".[3] The President invoked the International Emergency Economic Powers Act (IEEPA) and declared a national emergency, stating that the risk of court-ordered seizure or other actions against these funds constitutes an unusual and extraordinary threat to U.S. national security and foreign policy.[4]

At a January 28, 2026, Senate Foreign Relations Committee hearing, Secretary of State Marco Rubio confirmed the first sale of Venezuelan oil, valued at $500 million, had been deposited in a Qatari bank account. He further testified that $300 million had been transferred to the Venezuelan government to meet payroll obligations for public sector employees. Secretary Rubio also testified that the Treasury Department has a written agreement with the Venezuelan government to review monthly budget requests from the Qatari bank account. He stated that the $200 million in oil proceeds remained in a "short-term account" and would ultimately be transferred to a U.S. Treasury account.

On February 4, 2026, at a House Financial Services Committee hearing, you agreed to provide the specific statutory authority the Treasury Department is relying on to custody and exercise control over Venezuela's sovereign assets, as well as a copy of the written agreement referenced in your testimony and additional details regarding the arrangement with the Qatari bank. Regardless of whether the Qatari bank account has been wound

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[1] @WhiteHouse, 6 Jan. 2026, https://x.com/WhiteHouse/status/2008691566131769746; "Trump says US to get 30 million to 50 million barrels of oil from Venezuela at market price," 7 Jan. 2026, https://www.npr.org/2026/01/07/nx-s1-5668993/trump-us-30-million-barrels-oil-venezuela.

[2] *Id*.

[3] "Safeguarding Venezuelan Oil Revenue for the Good of the American and Venezuelan People," 9 Jan. 2026, https://www.whitehouse.gov/presidential-actions/2026/01/safeguarding-venezuelan-oil-revenue-for-the-good-of-the-american-and-venezuelan-people/.

[4] *Id*.

down, it is important that the Administration produce related documents, submit to congressional oversight, and provide the American people with much-needed transparency on this opaque and legally questionable plan.

We request that you respond to the following questions by no later than March 25, 2026:

1. Under what statutory authority is the Treasury Department relying on to exercise custody over the sovereign assets of another country? Please provide the relevant statutory citations.
2. Under what statutory authority did the Treasury Department exercise custody indirectly through a third-country financial institution and direct the release of funds through an offshore bank account owned by the Government of Venezuela? Please provide the relevant statutory citations.
3. Has the Treasury Department's Office of the General Counsel issued a written legal opinion concluding that the Department can lawfully exercise custody over Venezuela's sovereign assets under these circumstances?
    a. If so, please provide a copy of that legal opinion.
    b. If not, please describe the legal analysis on which the Department is relying.
4. Did the Treasury Department request or receive a legal opinion from the Justice Department's Office of General Counsel regarding the Department's custody of Venezuelan sovereign assets under these circumstances?
    a. If so, please provide a copy of this opinion.
5. Please provide a copy of the written agreement between the Treasury Department and Venezuela's interim government regarding monthly budget requests, payments, and disbursements.
6. Is there a memorandum of understanding or other written agreement that governed or is currently governing the role of the Qatari bank that held or is currently holding these funds?
    a. If so, please provide a copy of this document.
7. In your testimony, you indicated that no formal audit agreement is currently in place, but the Treasury Department will bring in outside auditors. Secretary Rubio committed to notifying the Senate Foreign Relations Committee once an audit system is established.
    a. Has this audit system been established, and if so, when did it begin operating?
    b. Will you commit to providing notification once the Treasury Department has finalized this audit system?
8. On February 13, 2026, Energy Secretary Chris Wright stated that these funds "won't go to Qatar anymore" and there is a U.S. Treasury account.[5] He also said that Venezuelan oil sales have totaled $1 billion and in the next few weeks will bring in another $5 billion.[6]
    a. As of the date of your response to this letter, what is the current balance being held in this Qatari bank account?
    b. Has the Qatari bank account been closed? If so, were any funds transferred to another account upon closure? To what account or where were these funds transferred?
    c. Under what statutory authority is the Treasury Department transferring Venezuelan oil revenues from an offshore bank account to a U.S. Treasury account?
    d. As of the date of your response to this letter, what is the current balance being held in the designated U.S. Treasury account?

[5] "Venezuela oil sales top $1 billion, funds won't go to Qatar account anymore, Energy secretary says," 13 Feb. 2026, https://www.cnbc.com/2026/02/13/venezuela-oil-sales-qatar-chris-wright-trump.html.
[6] *Id.*

e. Since January 28, 2026, has the Treasury Department authorized or facilitated any additional payments to the Venezuelan government or to any other recipients from either the Qatari account or from the U.S. Treasury account? If so, please provide an itemized list with details on the transaction amounts, recipients, and the purposes for which the payments were authorized.

9. The Federal Reserve Bank of New York serves as the primary fiscal agent for the Treasury Department, including related to management of the Treasury General Account.
    a. Are the Venezuelan oil funds being held in a U.S. Treasury custodial account at the Federal Reserve Bank of New York? If so, are these funds being held in the Treasury General Account or held in a segregated custodial account?
    b. Are the Venezuelan oil funds being held in a subaccount of the Government of Venezuela or Central Bank of Venezuela at the Federal Reserve Bank of New York or at any other U.S. insured depository institution?
    c. Has any U.S. financial institution been involved in or will be involved in transactions related to or the movement of Venezuelan oil funds?
10. In early January, the Office of Foreign Assets Control (OFAC) issued licenses permitting the commodity firms Vitol and Trafigura to engage in certain sales of Venezuelan oil. Both firms have previously been involved in bribery schemes, and a senior employee of Vitol was a major donor to President Trump's 2024 campaign.[7] Please describe the process by which Vitol and Trafigura received these licenses, including whether other firms with comparable businesses were considered for these licenses.

Sincerely,

Sean Casten
Member of Congress

Chris Van Hollen
United States Senator

[7] "Treasury opens Venezuelan crude oil trading up to more companies," 29 Jan. 2026, https://www.politico.com/news/2026/01/29/treasury-opens-venezuelan-crude-oil-00756321.